

**THE CONSTITUTION (NINTH
AMENDMENT) BILL, 1956**

(AS INTRODUCED IN LOK SABHA)

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A
BILL

further to amend the Constitution of India.

BE it enacted by Parliament in the Seventh Year of the Republic of India as follows:—

1. (1) This Act may be called the Constitution (Ninth Amendment) Act, 1956. Short title
and com-
mencement.

5 (2) It shall come into force on the 1st day of October, 1956.

2. (1) In article 1 of the Constitution,—

(a) for clause (2), the following clause shall be substituted, Amendment
of article 1
and First
Schedule.
namely:—

10 “(2) The States and the territories thereof shall be as specified in the First Schedule” and

(b) in clause (3), for sub-clause (b), the following sub-clause shall be substituted, namely:—

“(b) the Union territories specified in the First Schedule; and”.

(2) For the First Schedule to the Constitution, the following Schedule shall be substituted, namely:—

“FIRST SCHEDULE

[Articles 1 and 4]

I. THE STATES

5

<i>Name</i>	<i>Territories</i>
1. Andhra-Telangana	The territories specified in sub-section (1) of section 3 of the Andhra State Act, 1953 and the territories specified in sub-section (1) of section 3 of the States Reorganisation Act, 1956.
2. Assam	The territories which immediately before the commencement of this Constitution were comprised in the Province of Assam, the Khasi States and the Assam Tribal Areas, but excluding the territories specified in the Schedule to the Assam (Alteration of Boundaries) Act, 1951.
3. Bihar	The territories which immediately before the commencement of this Constitution were either comprised in the Province of Bihar or were being administered as if they formed part of that Province.
4. Gujarat	The territories specified in sub-section (1) of section 10 of the States Reorganisation Act, 1956.
5. Kerala	The territories specified in sub-section (1) of section 5 of the States Reorganisation Act, 1956.
6. Madhya Pradesh	The territories specified in sub-section (1) of section 11 of the States Reorganisation Act, 1956.
7. Madras	The territories which immediately before the commencement of this Constitution were either comprised in the Province of Madras or were being administered as if they formed part of that Province and the territories specified in section 4 of the States Reorganisation Act, 1956, but excluding the territories specified in sub-section (1) of section 3 and sub-section (1) of section 4 of the Andhra State Act, 1953 and the territories specified in clause (b) of sub-section (1) of section 5, section 6 and clause (d) of sub-section (1) of section 7 of the States Reorganisation Act, 1956.
8. Maharashtra	The territories specified in sub-section (1) of section 9 of the States Reorganisation Act, 1956.

<i>Name</i>	<i>Territories</i>
9. Mysore . . .	The territories specified in sub-section (1) of section 7 of the States Reorganisation Act, 1956.
5 10. Orissa . . .	The territories which immediately before the commencement of this Constitution were either comprised in the Province of Orissa or were being administered as if they formed part of that Province.
10 11. Punjab . . .	The territories specified in section 13 of the States Reorganisation Act, 1956.
12. Rajasthan . . .	The territories specified in section 12 of the States Reorganisation Act, 1956.
15 13. Uttar Pradesh	The territories which immediately before the commencement of this Constitution were either comprised in the Province known as the United Provinces or were being administered as if they formed part of that Province.
20 14. West Bengal . . .	The territories which immediately before the commencement of this Constitution were either comprised in the Province of West Bengal or were being administered as if they formed part of that Province and the territory of Chandernagore as defined in clause (c) of section 2 of the Chandernagore (Merger) Act, 1954.
25 . . .	
15 15. Jammu and Kashmir	The territory which immediately before the commencement of this Constitution was comprised in the Indian State of Jammu and Kashmir.
30	

II. THE UNION TERRITORIES

<i>Name</i>	<i>Extent</i>
35 1. Bombay . . .	The territory specified in section 8 of the States Reorganisation Act, 1956.
2. Delhi . . .	The territory which immediately before the commencement of this Constitution was comprised in the Chief Commissioner's Province of Delhi.
40 3. Himachal Pradesh	The territories which immediately before the commencement of this Constitution were being administered as if they were Chief Commissioners' Provinces under the names of Himachal Pradesh and Bilaspur.
45	

*Name**Extent*

4. Manipur . The territory which immediately before the commencement of this Constitution was being administered as if it were a Chief Commissioner's Province under the name of Manipur. 5
5. Tripura The territory which immediately before the commencement of this Constitution was being administered as if it were a Chief Commissioner's Province under the name of Tripura. 10
6. The Andaman and Nicobar Islands. The territory which immediately before the commencement of this Constitution was comprised in the Chief Commissioner's Province of the Andaman and Nicobar Islands. 15
7. The Laccadive, Minicoy and Amindivi Islands. The territory specified in section 6 of the States Reorganisation Act, 1956." 20

Amendment
of article 80
and Fourth
Schedule.

3. (1) In article 80 of the Constitution,—
- (a) in sub-clause (b) of clause (1), after the word "States", the words "and of the Union territories" shall be added; 20
- (b) in clause (2), after the words "of the States", the words "and of the Union territories" shall be inserted;
- (c) in clause (4), the words and letters "specified in Part A or Part B of the First Schedule" shall be omitted; and 25
- (d) in clause (5), for the words and letter "States specified in Part C of the First Schedule", the words "Union territories" shall be substituted.
- (2) For the Fourth Schedule to the Constitution, the following Schedule shall be substituted, namely:— 30

"FOURTH SCHEDULE

[Articles 4(1) and 80(2)]

Allocation of seats in the Council of States

To each State or Union territory specified in the first column of the following table, there shall be allotted the number of seats specified in the second column thereof opposite to that State or that Union territory, as the case may be. 35

TABLE

1. Andhra-Telangana	...	18	
2. Assam	..	7	40

	3. Bihar	..	23
	4. Gujarat	..	11
	5. Kerala	..	9
	6. Madhya Pradesh	..	16
5	7. Madras	..	17
	8. Maharashtra	..	17
	9. Mysore	..	12
	10. Orissa	..	10
	11. Punjab	..	11
10	12. Rajasthan	..	10
	13. Uttar Pradesh	..	34
	14. West Bengal	..	15
	15. Jammu and Kashmir		4
	16. Bombay	..	3
15	17. Delhi	..	2
	18. Himachal Pradesh	..	1
	19. Manipur	..	1
	20. Tripura	..	1
	TOTAL		222"

20 4. For articles 81 and 82 of the Constitution, the following articles shall be substituted, namely:—

Substitution
of new arti-
cles for
articles 81
and 82.

"81. (1) Subject to the provisions of article 331, the House of the People shall consist of—

Composition
of the House
of the
People.

25 (a) not more than five hundred members chosen by direct election from territorial constituencies in the States, and

(b) not more than twenty members to represent the Union territories, chosen in such manner as Parliament may by law provide.

30 (2) For the purposes of sub-clause (a) of clause (1),—

(a) there shall be allotted to each State a number of seats in the House of the People in such manner that the ratio between that number and the population of the State is, so far as practicable, the same for all States; and

(b) each State shall be divided into territorial constituencies in such manner that the ratio between the population of each constituency and the number of seats allotted to it is, so far as practicable, the same throughout the State.

(3) In this article, the expression "population" means the population as ascertained at the last preceding census of which the relevant figures have been published. 5

Readjustment after each census.

82. Upon the completion of each census, the allocation of seats in the House of the People to the States and the division of each State into territorial constituencies shall be readjusted 10 by such authority and in such manner as Parliament may by law determine:

Provided that such readjustment shall not affect representation in the House of the People until the dissolution of the then existing House." 15

Amendment of article 131.

5. In article 131 of the Constitution, for the proviso, the following proviso shall be substituted, namely:—

"Provided that the said jurisdiction shall not extend to a dispute arising out of any treaty, agreement, covenant, engagement, *sanad* or other similar instrument which, having been 20 entered into or executed before the commencement of this Constitution, continues in operation after such commencement or which provides that the said jurisdiction shall not extend to such a dispute."

Amendment of article 153.

6. To article 153 of the Constitution, the following proviso shall 25 be added, namely:—

"Provided that nothing in this article shall prevent the appointment of the same person as Governor for two or more States."

Amendment of article 168.

7. (1) In clause (1) of article 168 of the Constitution, in sub- 30 clause (a), the word "Bombay" shall be omitted and after the word "Madras", the word "Mysore" shall be inserted.

(2) In the said sub-clause, as from such date as the President may, by public notification appoint, after the word "Bihar", the words "Madhya Pradesh" shall be inserted. 35

Substitution of new article for article 170.

8. For article 170 of the Constitution, the following article shall be substituted, namely:—

Composition of the Legislative Assemblies.

"170. (1) Subject to the provisions of article 333, the Legislative Assembly of each State shall consist of not more than five hundred, and not less than sixty, members chosen by direct 40 election from territorial constituencies in the State.

(2) For the purposes of clause (1), each State shall be divided into territorial constituencies in such manner that the ratio between the population of each constituency and the number of seats allotted to it shall, so far as practicable, be the same throughout the States.

Explanation.—In this clause, the expression “population” means the population as ascertained at the last preceding census of which the relevant figures have been published.

(3) Upon the completion of each census, the total number of seats in the Legislative Assembly of each State and the division of each State into territorial constituencies shall be readjusted by such authority and in such manner as Parliament may by law determine:

Provided that such readjustment shall not affect representation in the Legislative Assembly until the dissolution of the then existing Assembly.”

9. In clause (1) of article 171 of the Constitution, for the word “one-fourth”, the word “one-third” shall be substituted. Amendment of article 171.

10. In article 216 of the Constitution, the proviso shall be omitted. Amendment of article 216.

11. In article 217 of the Constitution, in clause (1), for the words “shall hold office until he attains the age of sixty years”, the following words and figures shall be substituted, namely:— Amendment of article 217.

“shall hold office, in the case of an additional or acting Judge, as provided in article 224, and in any other case, until he attains the age of sixty years”.

12. For article 220 of the Constitution, the following article shall be substituted, namely:— Substitution of new article for article 220.

“220. No person who, after the commencement of this Constitution, has held office as a permanent Judge of a High Court shall plead or act in any court or before any authority in India except the Supreme Court and the other High Courts.”. Restriction on practice after being a permanent Judge.

13. In article 222 of the Constitution,— Amendment of article 222.

(a) in clause (1), the words “within the territory of India” shall be omitted; and

(b) clause (2) shall be omitted.

Substitution
of new article
for article 224.

Appointment
of additional
and acting
Judges.

14. For article 224 of the Constitution, the following article shall be substituted, namely:—

“224. (1) If by reason of any temporary increase in the business of a High Court or by reason of arrears of work therein, it appears to the President that the number of the Judges of that Court should be for the time being increased, the President may appoint duly qualified persons to be additional Judges of the Court for such period not exceeding two years as he may specify. 5

(2) When any Judge of a High Court other than the Chief Justice is by reason of absence or for any other reason unable to perform the duties of his office or is appointed to act temporarily as Chief Justice, the President may appoint a duly qualified person to act as a Judge of that Court until the permanent Judge has resumed his duties.”. 15

Substitution
of new articles
for articles 230, 231
and 232.

Extension of
jurisdiction
of High
Courts to
Union territories.

15. For articles 230, 231 and 232 of the Constitution, the following articles shall be substituted, namely:—

“230. (1) Parliament may by law extend the jurisdiction of a High Court to, or exclude the jurisdiction of a High Court from, any Union territory. 20

(2) Where the High Court of a State exercises jurisdiction in relation to a Union territory,—

(a) nothing in this Constitution shall be construed as empowering the Legislature of the State to increase, restrict or abolish that jurisdiction; and 25

(b) the reference in article 227 to the Governor shall, in relation to any rules, forms or tables for subordinate courts in that territory, be construed as a reference to the President.

Establishment of a
common
High Court
for two or
more States.

231. (1) Notwithstanding anything contained in the preceding provisions of this Chapter, Parliament may by law establish a common High Court for two or more States or for two or more States and a Union territory. 30

(2) In relation to any such High Court,—

(a) the reference in article 217 to the Governor of the State shall be construed as a reference to the Governors of all the States in relation to which the High Court exercises jurisdiction; 35

(b) the reference in article 227 to the Governor shall, in relation to any rules, forms or tables for subordinate courts be construed as a reference to the Governor of the State in which the subordinate courts are situate; and

5 (c) the references in articles 219 and 229 to the State shall be construed as a reference to the State in which the High Court has its principal seat:

10 Provided that if such principal seat is in a Union territory, the references in articles 219 and 229 to the Governor, Public Service Commission, Legislature and Consolidated Fund of the State shall be construed respectively as references to the President, Union Public Service Commission, Parliament and Consolidated Fund of India."

16. In Part VIII of the Constitution,—

Amendment
of Part VIII.

15 (a) for the heading "THE STATES IN PART C OF THE FIRST SCHEDULE", the heading "THE UNION TERRITORIES" shall be substituted; and

(b) for articles 239 and 240, the following articles shall be substituted, namely:—

20 "239. Every Union territory shall be administrated by the President acting, to such extent as he thinks fit, through a Chief Commissioner or other authority to be appointed by him: Administration of Union territories.

25 Provided that the President may by regulation made under article 240 constitute for any such territory a council of advisers to the Chief Commissioner or other authority with such functions as may be specified in the regulation.

30 240. The President may make regulations for the peace and good government of any Union territory and any regulation so made may repeal or amend any law made by Parliament or any existing law which is for the time being applicable to any such territory and, when promulgated by the President shall have the same force and effect as an Act of Parliament which applies to such territory." Power of President to make regulations for Union territories.

35 17. After article 258 of the Constitution, the following article shall be inserted, namely:—

Insertion of
new article
258A.

40 "258A. Notwithstanding anything in this Constitution, the Governor of a State may, with the consent of the Government of India, entrust either conditionally or unconditionally to that Government or to its officers functions in relation to any matter to which the executive power of the State extends." Power of the States to entrust functions to the Union.

Insertion of
new article
290A.
Annual pay-
ment to the
Travancore
Devaswom
Board.

18. After article 290 of the Constitution, the following article shall be inserted, namely:—

“290A. A sum of forty-six lakhs and fifty thousand rupees shall be charged on, and paid out of, the Consolidated Fund of the State of Kerala every year to the Travancore Devaswom Board.”.

Substitution
of new arti-
cle for article
298.
Power to
carry on
trade etc.

19. For article 298 of the Constitution, the following article shall be substituted, namely:—

“298. The executive power of the Union and of each State shall extend to the carrying on of any trade or business and to the acquisition, holding and disposal of property and the making of contracts for any purpose:

Provided that—

(a) the said executive power of the Union shall, in so far as such trade or business or such purpose is not one with respect to which Parliament may make laws, be subject in each State to legislation by the State; and

(b) the said executive power of each State shall, in so far as such trade or business or such purpose is not one with respect to which the State Legislature may make laws, be subject to legislation by Parliament.”.

Insertion of
new article
350A.

20. After article 350 of the Constitution, the following article shall be inserted, namely:—

Facilities for
instruction
in mother-
tongue at
primary
stage.

“350A. It shall be the endeavour of every State and of every local authority within the State to provide adequate facilities for instruction in the mother-tongue at the primary stage of education to children belonging to linguistic minority groups; and the President may issue such directions to any State as he considers necessary or proper for securing the provision of such facilities.”.

Substitution
of new article
for article
371.

Special
provision
with respect
to the States
of Andhra-
Telangana
and Punjab.

21. For article 371 of the Constitution, the following article shall be substituted, namely:—

“371. Notwithstanding anything in this Constitution, the President may, by order made with respect to the State of Andhra-Telangana or Punjab, provide for the constitution and functions of regional committees of the Legislative Assembly of the State, for the modifications to be made in the rules of business of the Government and in the rules of procedure of the

Legislative Assembly of the State and for any special responsibility of the Governor in order to secure the proper functioning of the regional committees.”.

22. In the Second Schedule to the Constitution,—

Amendment
of the Second
Schedule.

5 (a) in the heading of Part D, the words and letter “in States in Part A of the First Schedule” shall be omitted; and

(b) in paragraph 10,—

(i) for sub-paragraph (1). the following sub-paragraph shall be substituted, namely:—

10 (1) There shall be paid to the Judges of High Courts, in respect of time spent on actual service, salary at the following rates per mensem, that is to say,—

15 A. In the case of any High Court other than the High Court of Kerala, Mysore or Rajasthan—

	Rs.
The Chief Justice	4,000
Any other Judge	3,500

B. In the case of the High Courts of Kerala, Mysore or Rajasthan—

20 The Chief Justice	3,000
Any other Judge	2,500

25 • Provided that if a Judge of any such High Court at the time of his appointment is in receipt of a pension (other than a disability or wound pension) in respect of any previous service under the Government of India or any of its predecessor Governments or under the Government of a State or any of its predecessor Governments, his salary in respect of service in the High Court shall be reduced by the amount of that pension. ”;

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(ii) sub-paragraphs (3) and (4) shall be omitted.

23 In the Seventh Schedule to the Constitution, entry 33 of the Union List and entry 36 of the State List shall be omitted and for entry 42 of the Concurrent List, the following entry shall be substituted, namely:—

Modification
of entries in
the Lists relating to acquisition and requisitioning of property.

“42. Acquisition and requisitioning of property.”

Amendment
of certain pro-
visions rela-
ting to ancient
and historical
monuments,
etc.

24. In each of the following provisions of the Constitution, namely:—

- (i) entry 67 of the Union List,
- (ii) entry 12 of the State List,
- (iii) entry 40 of the Concurrent List, and
- (iv) article 49,

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for the words “declared by Parliament by law”, the words “declared by or under law made by Parliament” shall be substituted.

Amendment
of entry 24 of
State List.

25. In the Seventh Schedule to the Constitution, in entry 24 of the State List, for the word and figures “entry 52”, the words and figures “entries 7 and 52” shall be substituted.

10

Consequential
and minor
amendments
and repeals
and savings.

26. (1) The consequential and minor amendments and repeals directed in the Schedule shall be made in the Constitution and in the Constitution (Removal of Difficulties) Order, No. VIII, made under article 392 of the Constitution.

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(2) Notwithstanding the repeal of article 243 of the Constitution by the said Schedule, all regulations made by the President under that article and in force immediately before the commencement of this Act shall continue in force until altered or repealed or amended by a competent Legislature or other competent authority.

20

THE SCHEDULE

(See section 26)

CONSEQUENTIAL AND MINOR AMENDMENTS AND REPEALS IN THE CONSTITUTION

Article 3.—In the proviso, omit “specified in Part A or Part B of the First Schedule”.

Article 31A.—In sub-clause (a) of clause (2), for “Travancore-Cochin” substitute “Kerala”.

Article 58.—In the *Explanation*, omit “or Rajpramukh or Uparajpramukh”.

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Article 66.—In the *Explanation*, omit “or Rajpramukh or Uparajpramukh”.

Article 72.—In clause (3), omit “or Rajpramukh”.

Article 73.—In the proviso to clause (1), omit “specified in Part A or Part B of the First Schedule”.

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Article 101.—In clause (2), omit “specified in Part A or Part B of the First Schedule”, and for “such a State” substitute “a State”.

Article 112.—In sub-clause (d) (iii) of clause (3), for “a Province corresponding to a State specified in Part A of the First Schedule”, substitute “a Governor’s Province of the Dominion of India”.

Article 151.—In clause (2), omit “or Rajpramukh”.

5 **Part VI.**—In the heading, omit “IN PART A OF THE FIRST SCHEDULE”.

Article 152.—For “means a State specified in Part A of the First Schedule” substitute “does not include the State of Jammu and Kashmir”.

10 **Article 208.**—Omit clause (2) and renumber clause (3) as clause (2).

Article 209.—Omit “or with any rule or standing order having effect in relation to the Legislature of the State under clause (2) of that article”.

15 **Article 214.**—Omit “(1)” and clauses (2) and (3).

Article 219.—Omit “in a State”.

Article 229.—In the proviso to clause (1) and in the proviso to clause (2), omit “in which the High Court has its principal seat”.

Omit Part VII.

20 **Article 241.**—(a) In clause (1), for “State specified in Part C of the First Schedule”, substitute “Union territory”, and for “such State”, substitute “such territory”.

(b) For clauses (3) and (4), substitute—

25 “(3) Subject to the provisions of this Constitution and to the provisions of any law of the appropriate Legislature made by virtue of powers conferred on that Legislature by or under this Constitution, every High Court exercising jurisdiction immediately before the commencement of the Constitution (Sixth Amendment) Act, 1956, in relation to any Union territory shall
30 continue to exercise such jurisdiction in relation to that territory after such commencement.

(4) Nothing in this article derogates from the power of Parliament to extend or exclude the jurisdiction of a High Court for a State to, or from, any Union territory or part thereof.”.

35 **Omit article 242.**

Omit Part IX.

Article 244.—Omit “specified in Part A or Part B of the First Schedule”.

Article 246.—In clauses (2) and (3), omit “specified in Part A or Part B of the First Schedule” and in clause (4), for “in Part A or Part B of the First Schedule” substitute “in a State”.

Article 254.—In clause (2), omit “specified in Part A or Part B of the First Schedule”. 5

Article 255.—Omit “specified in Part A or Part B of the First Schedule”.

Omit article 259.

Article 264.—For article 264, substitute—

Interpretation.

264. In this Part, ‘Finance Commission’ means a Finance 10
Commission constituted under article 280.”.

Article 267.—In clause (2), omit “or Rajpramukh”.

Article 268.—In clause (1), for “State specified in Part C of the First Schedule” substitute “Union territory”.

Article 269.—In clause (2), for “States specified in Part C of the 15
First Schedule” substitute “Union territories”.

Article 270.—In clauses (2) and (3), for “States specified in Part C of the First Schedule” substitute “Union territories”.

Omit article 278.

Article 280.—In clause (3), omit sub-clause (c) and re-letter sub- 20
clause (d) as sub-clause (c).

Article 283.—In clause (2), omit “or Rajpramukh”.

Article 291.—Omit “(1)” and clause (2).

Article 299.—In clause (1), omit “or the Rajpramukh”, and in 25
clause (2), omit “nor the Rajpramukh”.

Omit article 306.

Article 308.—For “means a State specified in Part A or Part B of the First Schedule” substitute “does not include the State of Jammu and Kashmir”.

Article 309.—Omit “or Rajpramukh”. 30

Article 310.—In clause (1), omit “or, as the case may be, the Rajpramukh”, and in clause (2), omit “or Rajpramukh” and “or the Rajpramukh”.

Article 311.—In clause (2), omit “or Rajpramukh”.

Article 315.—In clause (4), omit “or Rajpramukh”.

Article 316.—In clauses (1) and (2), omit “or Rajpramukh”.

Article 317.—In clause (2), omit “or Rajpramukh”.

Article 318.—Omit “or Rajpramukh”.

5 *Article 320.*—In clause (3), omit “or Rajpramukh” and “or Rajpramukh, as the case may be”, and in clause (5), omit “or Rajpramukh”.

Article 323.—In clause (2), omit “or Rajpramukh” and “or Rajpramukh, as the case may be”.

10 *Article 324.*—In clause (6), omit “or Rajpramukh”.

Article 332.—In clause (1), omit “specified in Part A or Part B of the **First Schedule**”.

Article 333.—Omit “or Rajpramukh”.

Article 337.—Omit “specified in Part A or Part B of the **First**
15 **Schedule**”.

Article 339.—In clause (1), omit “specified in Part A and Part B of the **First Schedule**” and in clause (2), for “any such State” substitute “a State”.

Article 341.—In clause (1), after “any State” insert “or Union
20 territory”, omit “specified in Part A or Part B of the **First Schedule**”, omit “or Rajpramukh” and after “that State” insert “or Union territory, as the case may be”.

Article 342.—In clause (1), after “any State” insert “or Union
territory”, omit “specified in Part A or Part B of the **First Schedule**”,
25 omit “or Rajpramukh” and after “that State” insert “or Union territory, as the case may be”.

Article 348.—Omit “or Rajpramukh”.

Article 356.—In clause (1), omit “or Rajpramukh” and “or Rajpramukh, as the case may be”.

30 *Article 361.*—In clauses (2), (3) and (4), omit “or Rajpramukh” and in clause (4), omit “or the Rajpramukh”.

Article 366.—Omit clause (21), and for clause (30), substitute—

“(30) ‘Union territory’ means any Union territory specified
in the **First Schedule** and includes any other territory comprised
35 within the territory of India but not specified in that **Schedule**”.

Article 367.—In clause (2), omit “specified in Part A or Part B of the First Schedule” and “or Rajpramukh”.

Article 368.—Omit “specified in Parts A and B of the First Schedule”.

Omit articles 379 to 391, both inclusive.

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Second Schedule.—(a) In the heading of Part A and in paragraph 1, omit “specified in Part A of the First Schedule”;

(b) in paragraph 2, omit “so specified”;

(c) in paragraph 3, for “such States” substitute “the States”;

(d) in the heading of Part B, omit “in Part A and Part B of the First Schedule”;

(e) in paragraph 6, omit “specified in Part A or Part B of the First Schedule”;

(f) in the heading of Part C, omit “of a State in Part A of the First Schedule”, and for “any such State” substitute “a State”; and

(g) in paragraph 8, omit “of a State specified in Part A of the First Schedule”, and for “such State” substitute “a State”.

Fifth Schedule.—(a) In paragraph 1, omit “means a State specified in Part A or Part B of the First Schedule but”;

(b) in paragraph 3, omit “or Rajpramukh”;

20

(c) in paragraph 4, in sub-paragraph (2), omit “or Rajpramukh, as the case may be” and in sub-paragraph (3), omit “or Rajpramukh”.

(d) in paragraph 5, in sub-paragraphs (1) and (2), omit “or Rajpramukh, as the case may be”, in sub-paragraph (3), omit “or Rajpramukh” and in sub-paragraph (5), omit “or the Rajpramukh”.

Seventh Schedule.—In List I,—

(a) in entry 32, omit “specified in Part A or Part B of the First Schedule”; and

(b) for entry 79, substitute,—

“79. Extension of the jurisdiction of a High Court to, and exclusion of the jurisdiction of a High Court from, any Union territory.”

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CONSEQUENTIAL AMENDMENTS IN THE CONSTITUTION (REMOVAL OF
DIFFICULTIES) ORDER No. VIII

In the Constitution (Removal of Difficulties) Order No. VIII, for sub-paragraphs (1), (2) and (3) of paragraph 2, substitute—

5 “(1) In article 81,—

(a) in sub-clause (b) of clause (1), after the words “Union territories”, the words, letter and figures “and the tribal areas specified in Part B of the Table appended to paragraph 20 of the Sixth Schedule” shall be inserted; and

10 (b) to clause (2), the following proviso shall be added namely:—

15 “Provided that the constituencies into which the State of Assam is divided shall not comprise the tribal areas specified in Part B of the Table appended to paragraph 20 of the Sixth Schedule.”

(2) In clause (2) of article 170, after the words “throughout the State”, the following proviso shall be inserted, namely:—

20 “Provided that the constituencies into which the State of Assam is divided shall not comprise the tribal areas specified in Part B of the Table appended to paragraph 20 of the Sixth Schedule.””

STATEMENT OF OBJECTS AND REASONS

In order to implement the scheme of States reorganisation, it is necessary to make numerous amendments in the Constitution with effect from the 1st October, 1956. This Bill seeks to make these amendments and also some other amendments to certain provisions of the Constitution relating to the High Courts and High Court Judges, the executive power of the Union and the States, and a few entries in the legislative lists. The reasons for making the amendments are indicated below.

Clause 2.—The reorganisation scheme involves not only the establishment of new States and alterations in the area and boundaries of the existing States, but also the abolition of the three categories of States (Part A, Part B and Part C States) and the classification of certain areas as Union territories. Article 1 has to be suitably amended for this purpose and the First Schedule completely revised.

Clause 3.—The amendments proposed in article 80 are formal and consequential. The territorial changes and the formation of new States and Union territories as proposed in Part II of the States Reorganisation Bill, 1956, involve a complete revision of the Fourth Schedule to the Constitution by which the seats in the Council of States are allocated to the existing States. The present allocation is made on the basis of the population of each State as ascertained at the census of 1941 and the number of seats allotted to each Part A and Part B State is according to the formula, one seat per million for the first five millions and one seat for every additional two millions or part thereof exceeding one million. It is proposed to revise the allocation of seats on the basis of the latest census figures, but according to the same formula as before.

Clause 4.—The abolition of Part C States as such and the establishment of Union territories make extensive amendment of articles 81 and 82 inevitable. The provision in article 81(1) (b) that “the States shall be divided, grouped or formed into territorial constituencies” will no longer be appropriate, since after reorganisation each of the States will be large enough to be divided into a number of constituencies and will not permit of being grouped together with other States for this purpose or being “formed” into a single territorial constituency. Clause (2) of article 81 and article 82 will require to be combined and revised in order to make suitable provision for Union territories. Instead of amending the articles

piecemeal, it is proposed to revise and simplify them. Incidentally, it is proposed in clause (1) (b) of the revised article 81 to fix a maximum for the total number of representatives that may be assigned to the Union territories by Parliament.

Clause 5.—The proposed revision of the proviso to article 131 is consequential on the disappearance of Part B States as such. The two parts of the existing proviso have been combined.

Clause 6.—Article 153 provides that there shall be a Governor for each State. Since it may be desirable in certain circumstances to appoint a Governor for two or more States, it is proposed to add a proviso to this article to remove any possible technical bar to such an appointment.

Clause 7.—Sub-clause (a) of clause (1) of article 168 provides for bi-cameral legislatures in certain States. It is proposed that, among the reorganised States, Punjab and Mysore should continue to have such a legislature, and that the enlarged Madhya Pradesh should also be provided with one. Since the constitution of a Legislative Council for Madhya Pradesh will necessarily take time, it is proposed to bring the relevant amendment of article 168 (1) (a) into force from a future date by means of a public notification of the President.

Clause 8.—This seeks to revise article 170 mainly with a view to bringing it into line with articles 81 and 82 as revised by clause 4.

Clause 9.—Under clause (1) of article 171, the maximum strength of the Legislative Council of a State is fixed at one-fourth of the strength of the Legislative Assembly of that State. Although in the larger States, like Uttar Pradesh and Bihar, this maximum is adequate, it leads to difficulties in the case of the smaller States. It is, therefore, proposed to alter the maximum to one-third of the strength of the Legislative Assembly.

Clause 10.—Article 216 empowers the President to appoint to a High Court as many judges as he may from time to time deem it necessary and also to fix the maximum number of judges for each High Court by a separate order. The proviso is of little significance from the practical point of view, since the order fixing the maximum may be changed by the President whenever necessary. The appointment of additional and acting judges for which provision is sought to be made in clause 14 will also involve either frequent modifications in the order or a fixation of the maximum number at a high figure. It is, therefore, proposed to omit the proviso to article 216.

Clause 11.—The amendment of clause (1) of article 217 proposed in this clause is consequential on the proposal to provide for the appointment of additional and acting judges for limited periods.

Clause 12.—An important factor affecting the selection of High Court judges from the bar is the total prohibition contained in article 220 on practice after their retirement from the bench. It is proposed to revise the article so as to relax this complete ban and permit a retired judge to practise in the Supreme Court and in any High Court other than the one in which he was a permanent judge.

Clause 13.—Article 222 empowers the President to transfer judges from one High Court to another. Clause (2) of this article goes on to provide that when a judge is so transferred he shall be entitled to receive in addition to his salary a compensatory allowance. It is felt that there is no real justification for granting such an allowance and it is accordingly proposed to omit clause (2).

Clause 14.—The provision in article 224 for recalling retired judges to function on the bench of a High Court for short periods has been found to be neither adequate nor satisfactory. It is, therefore, proposed to replace this article by a provision for the appointment of additional judges to clear off arrears and for the appointment of acting judges in temporary vacancies.

Clause 15.—It is proposed to revise and simplify articles 230, 231 and 232 having regard to the constitutional position of States and Union territories after reorganisation. While under article 214 there will normally be a separate High Court for each State, power will be required to establish common High Courts for two or more States. Power will also be required to extend the jurisdiction of a High Court to a Union territory, wherever necessary, and to exclude the jurisdiction of a High Court from such territory. The revised articles 230 and 231 are designed to make these provisions.

Clause 16.—Part VIII of the Constitution provides for the administration of Part C States and Part IX for the administration of Part D territories. It is proposed to amend Part VIII to provide for the administration of Union territories and to repeal Part IX.

Clause 17.—While the President is empowered by article 258 (1) to entrust Union functions to a State Government or its officers, there is no corresponding provision enabling the Governor of a State to entrust State functions to the Central Government or its officers. This lacuna has been found to be of practical consequence in connection with the execution of certain development projects in the States. It is proposed to fill the lacuna by a new article 258A.

Clause 18.—Article VIII of the Covenant entered into by the Rulers of Travancore and Cochin in May, 1949, for the formation of the United State of Travancore and Cochin provided that Travancore's obligation to contribute annually a sum of Rs. 51 lakhs to

the Travancore Devaswom Fund should continue as an obligation of the United State. This arrangement was confirmed by article 238(10) (ii) of the Constitution. It is proposed that the existing arrangement should be continued even after the formation of the new State of Kerala, but the contribution to the Travancore Devaswom Board from the Consolidated Fund of that State should, in view of the transfer of territory from Travancore-Cochin to Madras, be reduced from Rs. 51 lakhs to Rs. 46.5 lakhs.

Clause 19.—In this clause it is proposed to revise and amplify the scope of article 298, mainly to make it clear that the Union Government, as well as the State Governments, are competent to carry on any commercial or industrial undertaking, whether or not it is related to a matter within the legislative competence of the Union, or, as the case may be, of the State. Similarly, the holding, acquisition and disposal of property and the making of contracts by the Union or a State could be for any purpose without constitutional impropriety. At the same time, the revised article provides that this extended executive power of the Union and of the States will be subject, in the former case, to legislation by the State, and in the latter case, to legislation by Parliament.

Clause 20.—The new article 350A proposed in this clause is designed to implement one of the States Reorganisation Commission's important recommendations regarding safeguards for linguistic minorities in the States after reorganisation.

Clause 21.—It is proposed to replace article 371 by another article making a special provision with respect to the States of Andhra and Punjab. This article will enable the President to constitute regional committees of the State Legislative Assembly and secure their proper functioning by directing suitable modifications to be made in the rules of business of Government and in the rules of procedure of the Assembly.

Clause 22.—The High Court of Travancore-Cochin will, as from the appointed day, become the High Court for the new State of Kerala and the High Courts of Mysore and Rajasthan will continue, respectively, as the High Courts for the enlarged "new" States with the same names. Taking into account the level of income at the bar and salaries payable to the judicial services in these States, it is considered that there is no need to increase the salaries payable to the Judges of these High Courts to the level of the other High Courts. It is proposed to amend sub-paragraph (1) of paragraph 10 of the Second Schedule to the Constitution providing for a salary of Rs. 3,000 to the Chief Justices, and Rs. 2,500 to the other Judges, of these three High Courts.

Sometimes it becomes necessary to appoint a retired district judge as a judge of a High Court. In the absence of a legal provision for withholding the pension due to such a judge, it has been the practice to obtain from him an undertaking that he would not claim the pension for the period for which he serves as a High Court judge. Since this is obviously unsatisfactory, it is proposed to add a proviso to paragraph 10(1) of the Second Schedule on the same lines as the proviso to paragraph 9(1) thereof regulating the salary of a judge of the Supreme Court in similar circumstances.

Sub-paragraphs (3) and (4) of paragraph 10 are no longer required, since appropriate provision has been made in the High Court Judges (Conditions of Service) Act, 1954.

Clause 23.—The existence of three entries in the legislative lists (33 of List I, 36 of List II and 42 of List III) relating to the essentially single subject of acquisition and requisitioning of property by the Government gives rise to unnecessary technical difficulties in legislation. In order to avoid these difficulties and simplify the constitutional position, it is proposed to omit the entries in the Union and State List and replace the entry in the Concurrent List by a comprehensive entry covering the whole subject.

Clause 24.—Entry 67 of the Union List refers to “ancient and historical monuments and records, and archæological sites and remains, declared by Parliament by law to be of national importance”. A large number of ancient monuments, archæological sites, etc., have been declared to be of national importance by an Act of Parliament. It requires another Act of Parliament to make the slightest alteration in, or addition to, the lists in that Act, which seems to be an unduly cumbrous procedure. It is, therefore, proposed to amend the entry substituting for the words “declared by Parliament by law”, the words “declared by or under law made by Parliament”. The same amendment is also proposed to be made in the connected provisions, entry 12 of the State List, entry 40 of the Concurrent List and article 49.

Clause 25.—Although the Union List has two entries 7 and 52, relating to industries, the latter alone is referred to in entry 24 of List II. The omission of entry 7 of List I appears to be due to an oversight and is sought to be rectified in this clause.

Clause 26 and the Schedule.—These contain the consequential and minor amendments and repeals proposed to be made in the Constitution and in the Constitution (Removal of Difficulties) Order No. VIII pertaining to the Assam tribal areas.

NEW DELHI;

GOVIND BALLABH PANT.

The 14th April, 1956.

ANNEXURE

EXTRACTS FROM THE CONSTITUTION OF INDIA

* * * * *

PART I

THE UNION AND ITS TERRITORY

1. (1) India, that is Bharat, shall be a Union of States. Name and
territory of
the Union.
- (2) The States and the territories thereof shall be the States and their territories specified in Parts A, B and C of the First Schedule.
- (3) The territory of India shall comprise—
- (a) the territories of the States;
 - (b) the territories specified in Part D of the First Schedule;
 - and
 - (c) such other territories as may be acquired.

* * * * *

49. It shall be the obligation of the State to protect every monument or place or object of artistic or historic interest declared by Parliament by law to be of national importance, from spoliation, disfigurement, destruction, removal, disposal or export as the case may be. Promotion of
monuments
and
places and
objects of
national im-
portance.

* * * * *

80. (1) The Council of States shall consist of—

* * * * *

Composition
of the Coun-
cil of States.

- (b) not more than two hundred and thirty-eight representatives of the States.
- (2) The allocation of seats in the Council of States to be filled by representatives of the States shall be in accordance with the provisions in that behalf contained in the Fourth Schedule.
- * * * * *
- (4) The representatives of each State specified in Part A or Part B of the First Schedule in the Council of States shall be elected by the elected members of the Legislative Assembly of the State in accordance with the system of proportional representation by means of the single transferable vote.
- (5) The representatives of the States specified in Part C of the First Schedule in the Council of States shall be chosen in such manner as Parliament may by law prescribe.

* * * * *

Composition
of the House
of the People.

81. (1) (a) Subject to the provisions of clause (2) and of articles 82 and 331, the House of the People shall consist of not more than five hundred members directly elected by the voters in the States.

(b) For the purpose of sub-clause (a), the States shall be divided, grouped or formed into territorial constituencies and the number of members to be allotted to each such constituency shall be so determined as to ensure that there shall be not more than one member for every 500,000 of the population.

(c) The ratio between the number of members allotted to each territorial constituency and the population of that constituency as ascertained at the last preceding census of which the relevant figures have been published shall, so far as practicable, be the same throughout the territory of India.

(2) The representation in the House of the People of the territories comprised within the territory of India but not included within any State shall be such as Parliament may by law provide.

(3) Upon the completion of each census, the representation of the several territorial constituencies in the House of the People shall be readjusted by such authority, in such manner and with effect from such date as Parliament may by law determine :

Provided that such readjustment shall not affect representation in the House of the People until the dissolution of the then existing House.

Special provision as to representation of States in Part C and territories other than States.

82. Notwithstanding anything in clause (1) of article 81, Parliament may by law provide for the representation in the House of the People of any State specified in Part C of the First Schedule or of any territories comprised within the territory of India but not included within any State on a basis or in a manner other than that provided in that clause.

* * * * *

Original jurisdiction of the Supreme Court.

131. Subject to the provisions of this Constitution, the Supreme Court shall, to the exclusion of any other court, have original jurisdiction in any dispute—

- (a) between the Government of India and one or more States; or
- (b) between the Government of India and any State or States on one side and one or more other States on the other ; or
- (c) between two or more States,

if and in so far as the dispute involves any question (whether of law or fact) on which the existence or extent of a legal right depends:

Provided that the said jurisdiction shall not extend to—

- (i) a dispute to which a State specified in Part B of the First Schedule is a party, if the dispute arises out of any provision of a treaty, agreement, covenant, engagement, *sanad* or other similar instrument which was entered into or executed before the commencement of this Constitution and has, or has been, continued in operation after such commencement;
- (ii) a dispute to which any State is a party, if the dispute arises out of any provision of a treaty, agreement, covenant, engagement, *sanad* or other similar instrument which provides that the said jurisdiction shall not extend to such a dispute.

* * * * *

PART VI

THE STATES IN PART A OF THE FIRST SCHEDULE

CHAPTER II.—THE EXECUTIVE

The Governor

153. There shall be a Governor for each State.

Governors
of States.

* * * * *

CHAPTER III.—THE STATE LEGISLATURE

General

168. (1) For every State there shall be a Legislature which shall consist of the Governor, and

Constitution
of Legisla-
tures in
States.

(a) in the States of Bihar, Bombay, Madras, Punjab, Uttar Pradesh and West Bengal, two Houses;

(b) in other States, one House.

(2) Where there are two Houses of the Legislature of a State, one shall be known as the Legislative Council and the other as the Legislative Assembly, and where there is only one House, it shall be known as the Legislative Assembly.

170. (1) Subject to the provisions of article 333, the Legislative Assembly of each State shall be composed of members chosen by direct election.

(2) The representation of each territorial constituency in the Legislative Assembly of a State shall be on the basis of the population of that constituency as ascertained at the last preceding census of which the relevant figures have been published and shall, save in the case of the autonomous districts of Assam and the con-

stituency comprising the cantonment and municipality of Shillong, be on a scale of not more than one member for every seventy-five thousand of the population :

Provided that the total number of members in the Legislative Assembly of a State shall in no case be more than five hundred or less than sixty.

(3) The ratio between the number of members to be allotted to each territorial constituency in a State and the population of that constituency as ascertained at the last preceding census of which the relevant figures have been published shall, so far as practicable, be the same throughout the State.

(4) Upon the completion of each census, the representation of the several territorial constituencies in the Legislative Assembly of each State shall be readjusted by such authority, in such manner and with effect from such date as Parliament may by law determine :

Provided that such readjustment shall not affect representation in the Legislative Assembly until the dissolution of the then existing Assembly.

Composition
of the Legis-
lative Coun-
cils.

171. (1) The total number of members in the Legislative Council of a State having such a Council shall not exceed one-fourth of the total number of members in the Legislative Assembly of that State :

Provided that the total number of members in the Legislative Council of a State shall in no case be less than forty.

* * * * *

Constitution
of High
Courts.

216. Every High Court shall consist of a Chief Justice and such other Judges as the President may from time to time deem it necessary to appoint :

Provided that the Judges so appointed shall at no time exceed in number such maximum number as the President may, from time to time, by order fix in relation to that Court.

Appointment
and con-
ditions of
the office of
a Judge of a
High Court.

217. (1) Every Judge of a High Court shall be appointed by the President by warrant under his hand and seal after consultation with the Chief Justice of India, the Governor of the State, and, in the case of appointment of a Judge other than the Chief Justice, the Chief Justice of the High Court, and shall hold office until he attains the age of sixty years :

* * * * *

Prohibition of
practising in
courts or
before any
authority by
Judges.

220. No person who has held office as a Judge of a High Court after the commencement of this Constitution shall plead or act in any court or before any authority within the territory of India.

* * * * *

222. (1) The President may, after consultation with the Chief Justice of India, transfer a Judge from one High Court to any other High Court within the territory of India.

Transfer of
a Judge from
one High
Court to
another.

(2) When a Judge is so transferred, he shall, during the period he serves as a Judge of the other Court, be entitled to receive in addition to his salary such compensatory allowance as may be determined by Parliament by law and, until so determined, such compensatory allowance as the President may by order fix.

* * * * *

224. Notwithstanding anything in this Chapter, the Chief Justice of a High Court for any State may at any time, with the previous consent of the President, request any person who has held the office of a Judge of that Court or of any other High Court to sit and act as a Judge of the High Court for that State, and every such person so requested shall, while so sitting and acting, be entitled to such allowances as the President may by order determine and have all the jurisdiction, powers and privileges of, but shall not otherwise be deemed to be, a Judge of that High Court:

Attendance of
retired
Judges at
sittings of
High
Courts.

Provided that nothing in this article shall be deemed to require any such person as aforesaid to sit and act as a Judge of that High Court unless he consents so to do.

* * * * *

230. Parliament may by law—

- (a) extend the jurisdiction of a High Court to, or
- (b) exclude the jurisdiction of a High Court from,

Extension of
or exclu-
sion from
the juris-
diction of
High Courts.

any State specified in the First Schedule other than, or any area not within, the State in which the High Court has its principal seat.

231. Where a High Court exercises jurisdiction in relation to any area outside the State in which it has its principal seat, nothing in this Constitution shall be construed—

- (a) as empowering the Legislature of the State in which the Court has its principal seat to increase, restrict or abolish that jurisdiction;
- (b) as empowering the Legislature of a State specified in Part A or Part B of the First Schedule in which any such area is situate, to abolish that jurisdiction; or
- (c) as preventing the Legislature having power to make laws in that behalf for any such area, from passing, subject to the provisions of clause (b), such laws with respect to the jurisdiction of the Court in relation to that area as it would be competent to pass if the principal seat of the Court were in that area.

Restrictions
on the pow-
ers of the
Legislatures
of States
to make laws
with respect
to jurisdic-
tion of a
High Court
in a State
having juris-
diction out-
side that
State.

Interpreta-
tion.

232. Where a High Court exercises jurisdiction in relation to more than one State specified in the First Schedule or in relation to a State and an area not forming part of the State—

- (a) references in this Chapter to the Governor in relation to the Judges of a High Court shall be construed as references to the Governor of the State in which the Court has its principal seat;
- (b) the reference to the approval by the Governor of rules, forms and tables for subordinate courts shall be construed as a reference to the approval thereof by the Governor or the Rajpramukh of the State in which the subordinate court is situate, or if it is situate in an area not forming part of any State specified in Part A or Part B of the First Schedule, by the President; and
- (c) references to the Consolidated Fund of the State shall be construed as references to the Consolidated Fund of the State in which the Court has its principal seat.

PART VIII

THE STATES IN PART C OF THE FIRST SCHEDULE

Administra-
tion of
States in Part
C of the
First Sched-
ule.

239. (1) Subject to the other provisions of this Part, a State specified in Part C of the First Schedule shall be administered by the President acting, to such extent as he thinks fit, through a Chief Commissioner or a Lieutenant-Governor to be appointed by him or through the Government of a neighbouring State:

Provided that the President shall not act through the Government of a neighbouring State save after—

- (a) consulting the Government concerned; and
- (b) ascertaining in such manner as the President considers most appropriate the views of the people of the State to be so administered.

(2) In this article, references to a State shall include references to a part of a State.

Creation or
continuance
of local
Legislatures
or Council
of Advisers
or Ministers.

240. (1) Parliament may by law create or continue for any State specified in Part C of the First Schedule and administered through a Chief Commissioner or Lieutenant-Governor—

- (a) a body, whether nominated, elected or partly nominated and partly elected, to function as a Legislature for the State; or

(b) a Council of Advisers or Ministers, or both with such constitution, powers and functions, in each case, as may be specified in the law.

(2) Any such law as is referred to in clause (1) shall not be deemed to be an amendment of this Constitution for the purposes of article 368 notwithstanding that it contains any provision which amends or has the effect of amending the Constitution.

* * * * *

298. (1) The executive power of the Union and of each State shall extend, subject to any law made by the appropriate Legislature, to the grant, sale, disposition or mortgage of any property held for the purposes of the Union or of such State, as the case may be, and to the purchase or acquisition of property for those purposes respectively, and to the making of contracts.

Power to
acquire
property.

(2) All property acquired for the purposes of the Union or of a State shall vest in the Union or in such State, as the case may be.

371. Notwithstanding anything in this Constitution, during a period of ten years from the commencement thereof, or during such longer or shorter period as Parliament may by law provide in respect of any State, the Government of every State specified in Part B of the First Schedule shall be under the general control of, and comply with such particular directions, if any, as may from time to time be given by, the President:

Temporary
provisions
with respect
to States in
Part B of
the First
Schedule.

Provided that the President may by order direct that the provisions of this article shall not apply to any State specified in the order.

* * * * *

FIRST SCHEDULE

(Articles 1, 4 and 391)

The States and the territories of India

PART A

Names of States

Names of corresponding Provinces

1. Andhra

2. Assam

3. Bihar

4. Bombay

5. Madhya Pradesh

Assam

Bihar

Bombay

The Central Provinces
and Berar

<i>Names of States</i>	<i>Names of corresponding Provinces</i>
6. Madras	Madras
7. Orissa	Orissa
8. Punjab	East Punjab
9. Uttar Pradesh	The United Provinces
10. West Bengal.	West Bengal

TERRITORIES OF STATES

The territory of the State of Andhra shall comprise the territories specified in sub-section (1) of section 3 of the Andhra State Act, 1953.

The territory of the State of Assam shall comprise the territories which immediately before the commencement of this Constitution were comprised in the Province of Assam, the Khasi States and the Assam Tribal Areas but shall not include the territories specified in the Schedule to the Assam (Alteration of Boundaries) Act, 1951.

The territory of each of the other States in this Part shall comprise the territories which immediately before the commencement of this Constitution were comprised in the corresponding province and the territories which, by virtue of an order made under section 290A of the Government of India Act, 1935, were immediately before such commencement being administered as if they formed part of that Province and in the case of the State of West Bengal shall also comprise the territory of Chandernagore as defined in clause (c) of section 2 of the Chandernagore (Merger) Act, 1954, but in the case of the State of Madras shall not include the territories specified in sub-section (1) of section 3 and sub-section (1) of section 4 of the Andhra State Act, 1953.

PART B

NAMES OF STATES

1. Hyderabad.
2. Jammu and Kashmir,
3. Madhya Bharat.
4. Mysore.

5. Patiala and East Punjab States Union.
6. Rajasthan.
7. Saurashtra.
8. Travancore-Cochin.

TERRITORIES OF STATES

The territory of each of the States in this Part shall comprise the territory which, immediately before the commencement of this Constitution, was comprised in, or administered by the Government of, the corresponding Indian State, and in the case of the State of Madhya Bharat, shall also comprise the territory which, immediately before such commencement, was comprised in the Chief Commissioner's Province of Panth Piploda and in the case of the State of Mysore shall also comprise the territory specified in sub-section (1) of section 4 of the Andhra State Act, 1953.

PART C

NAMES OF STATES

1. Ajmer.
2. Bhopal.
3. Coorg.
4. Delhi.
5. Himachal Pradesh.
6. Kutch.
7. Manipur.
8. Tripura.
9. Vidhya Pradesh.

TERRITORIES OF STATES

The territory of each of the States of Ajmer, Coorg and Delhi shall comprise the territory which immediately before the commencement of this Constitution was comprised in the Chief Commissioners' Provinces of Ajmer-Merwara, Coorg and Delhi, respectively.

The territory of the State of Himachal Pradesh shall comprise the territories which immediately before the commencement of the Himachal Pradesh and Bilaspur (New State) Act, 1954, were comprised in the States of Bilaspur and Himachal Pradesh.

The territory of each of the other States in this Part shall comprise the territories which, by virtue of an order made under section 290A of the Government of India Act, 1935, were immediately before the commencement of this Constitution being administered as if they were a Chief Commissioner's Province of the same name.

PART D

The Andaman and Nicobar Islands.

SECOND SCHEDULE

[Articles 59 (3), 65 (3), 75 (6), 97, 125, 148 (3), 158 (3), 164 (5), 186 and 221.]

PART A

PROVISIONS AS TO THE PRESIDENT AND THE GOVERNORS OF STATES
SPECIFIED IN PART A OF THE FIRST SCHEDULE

PART D

PROVISIONS AS TO THE JUDGES OF THE SUPREME COURT AND OF THE
HIGH COURTS IN STATES IN PART A OF THE FIRST SCHEDULE

10. (1) There shall be paid to the Judges of the High Court of each State specified in Part A of the First Schedule, in respect of time spent on actual service, salary at the following rates per mensem, that is to say:—

The Chief Justice	..	4,000 rupees
Any other Judge	...	3,500 rupees

(3) Every Judge of a High Court shall receive such reasonable allowances to reimburse him for expenses incurred in travelling on duty within the territory of India and shall be afforded such reasonable facilities in connection with travelling as the President may from time to time prescribe.

(4) The rights in respect of leave of absence (including leave allowances) and pension of the Judges of the High Court of any State shall be governed by the provisions which, immediately before the commencement of this Constitution, were applicable to the Judges of the High Court in the corresponding Province.

FOURTH SCHEDULE

[Articles 4(1), 80(2) and 391]

Allocation of seats in the Council of States

To each State or group of States specified in the first column of the table of seats appended to this Schedule there shall be allotted the number of seats specified in the second column of the said table opposite to that State or group of States, as the case may be.

TABLE OF SEATS**THE COUNCIL OF STATES****Representatives of States specified in Part A of the First Schedule**

1	2
States	Total Seats
1. Andhra	12
2. Assam	6
3. Bihar	21
4. Bombay	17
5. Madhya Pradesh . .	12
6. Madras	18
7. Orissa	9
8. Punjab	8
9. Uttar Pradesh . . .	31
10. West Bengal . . .	14
TOTAL .	148

Representatives of States specified in Part B of the First Schedule

1	2
States	Total Seats
1. Hyderabad	11
2. Jammu and Kashmir .	4
3. Madhya Bharat . . .	6
4. Mysore	6
5. Patiala and East Punjab States Union	3
6. Rajasthan	9
7. Saurashtra	4
8. Travancore-Cochin . .	6
TOTAL .	49

Representatives of States specified in Part C of the First Schedule

1	2
States and Groups of States	Total Seats
1. Ajmer } 2. Coorg }	1
3. Bhopal	1
4. Himachal Pradesh	1
5. Delhi	1
6. Kutch	1
7. Manipur } 8. Tripura }	1
9. Vindhya Pradesh	4
TOTAL .	10
TOTAL OF ALL SEATS .	207

SEVENTH SCHEDULE

[Article 246]

List I—Union List

33. Acquisition or requisitioning of property for the purposes of the Union.

List II—State List

36. Acquisition or requisitioning of property, except for the purposes of the Union, subject to the provisions of entry 42 of List III.

List III—Concurrent List

42. Principles on which compensation for property acquired or requisitioned for the purposes of the Union or of a State or for any other public purpose is to be determined, and the form and the manner in which such compensation is to be given.

List I—Union List

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67. Ancient and historical monuments and records, and archaeological sites and remains, declared by Parliament by law to be of national importance.

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List II—State List

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12. Libraries, museums and other similar institutions controlled or financed by the State; ancient and historical monuments and records other than those declared by Parliament by law to be of national importance.

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List III—Concurrent List

40. Archaeological sites and remains other than those declared by Parliament by law to be of national importance.

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List I—Union List

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List II—State List

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24. Industries subject to the provisions of entry 52 of List I.

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**THE CONSTITUTION (REMOVAL OF DIFFICULTIES) ORDER
NO. VIII**

In exercise of the powers conferred by clause (1) of Article 392 of the Constitution of India, the President is pleased to make the following Order, namely:—

1. (1) This Order may be called the Constitution (Removal of Difficulties) Order No. VIII.

(2) It shall come into force at once.

2. For the period during which the tribal areas specified in Part B of the table appended to paragraph 20 of the Sixth Schedule to the Constitution or any parts thereof are administered by the President by virtue of sub-paragraph (2) of paragraph 18 of the said

Schedule, the Constitution of India shall have effect subject to the following adaptations:—

(1) In article 81,—

(a) to sub-clause (b) of clause (1), the following proviso shall be added:—

“Provided that the constituencies into which the State of Assam is divided shall not comprise the Tribal Areas specified in Part B of the table appended to paragraph 20 of the Sixth Schedule”; and

(b) in clause (2), after the words “not included within any State” the words, letter and figure “and of the Tribal Areas specified in Part B of the table appended to paragraph 20 of the Sixth Schedule” shall be inserted.

(2) In Article 82, after the words “not included within any State” the words, letter and figure “and of the Tribal Areas specified in Part B of the table appended to paragraph 20 of the Sixth Schedule” shall be inserted.

(3) In Article 170, after clause (1), the following clause shall be inserted:—

“(1A) The constituencies into which the State of Assam is divided for the purposes of clause (1) shall not comprise the Tribal Areas specified in Part B of the table appended to paragraph 20 of the Sixth Schedule”.

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further to amend the Constitution of India.

(*Shri Govind Ballabh Pat,*
Minister of Home Affair)